

**Undertaking to File an Income Tax Return by a Non-Resident Receiving Rent
from Real or Immovable Property or Receiving a Timber Royalty
for tax year _____**

Before completing this form, please read the instructions on page 2.

Section 1 – Non-resident identification

Last name or, if applicable, complete name of the corporation, trust, or estate		First name	Social insurance number or Canadian individual tax number	
Address (street number and name)			Date of birth	Year Month Day
City	Country	Postal or ZIP code	Canadian corporation, trust, or estate tax account number	
Telephone number			Fiscal year end for corporation, trust, or estate	
Mailing address if different than above			Year Month Day	
C/O			Date the first rental payment is due	
Street number and name			Year Month	
City	Country	Postal or ZIP code	Do not write in this area	

Section 2 – Rental property information

Addresses of all rental properties (list additional properties on a separate sheet)	Gross rents	Total expenses *	Net Income
Address			
City Province Postal code			
Address			
City Province Postal code			
* Provide a breakdown of expenses for each property on a separate sheet (see Section 2 on the back). Total ▶			

Section 3 – Undertaking by non-resident

I, the undersigned, undertake to file an income tax return under subsection 216(4) of the Canadian Income Tax Act for the tax year indicated above, within six months of the tax year, to include all rents from my real or immovable property and timber royalties, and to pay any additional tax owing. If I do not fulfill these obligations, I will have to pay to the Receiver General for Canada, the full amount of tax that I would otherwise have been required to remit in the year, as well as applicable interest charges.

Non-resident's signature

Name of representative* (please print)

Date

* If you sign for the non-resident, print your name on this line and provide a copy of the power of attorney document.

Section 4 – Canadian agent* identification

Name (individual or company)	Non-resident tax account number																				
Address (street number and name)	<table border="1"><tr><td>N</td><td>R</td><td></td><td></td><td></td><td></td><td></td><td></td><td></td></tr></table>	N	R																		
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City Province Postal code Telephone number	Other CRA Identifier Number																				
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* For purposes of this form, the "agent" must be a resident of Canada to whom the rental payments are paid or credited on behalf of the non-resident when this form is signed.

I, the undersigned, declare that I am the Canadian agent of the non-resident indicated in Section 1. If the non-resident does not file an income tax return or pay tax according to the undertaking, I understand that I will have to pay to the Receiver General for Canada the full amount of tax that would otherwise have been required to be remitted for the year, as well as applicable penalty and interest charges.

Agent's signature

Name of individual signing on the agent's* behalf (please print)

Date

* If the agent is a company, print the name of the person signing on the agent's behalf.

Personal information is collected under the Income Tax Act and is used to verify compliance with obligations related to withholding, remitting and reporting of Part XIII tax. It may also be used for any other purpose related to the administration or enforcement of the Act such as compliance and collection activities. It may be shared or verified with other federal, provincial, territorial or foreign government institutions to the extent authorized by law. Failure to provide this information may result in interest payable, and, or penalties. Personal information is protected under the Privacy Act and individuals have a right to file a complaint with the Privacy Commissioner of Canada regarding our handling of their information. Within the limitations set out in the Privacy Act, individuals have a right of access to, or correction of their personal information. Personal information is described in CRA PPU 094.

Instructions

- Use this form if you are a non-resident receiving rent from real or immovable property or a timber royalty and you want your agent to be able to elect to deduct and remit tax at the applicable rate on the net amounts available to you. Your agent must be a resident of Canada to whom the rental payments are paid or credited on your behalf when this form is signed.
 - File a separate form for each tax year. For individuals, the tax year corresponds to the calendar year (January 1 to December 31). For corporations, estates, and trusts, the tax year can differ from the calendar year; therefore, for these entities, indicate the fiscal year end.
 - File this form on or before the first day of each tax year, or when the first rental payment is due.
 - Complete all applicable sections on this form. An incomplete form will not be accepted as a valid undertaking and will be returned.
 - We will advise both the non-resident and the agent in writing when a valid undertaking is approved.
 - Your agent must continue to withhold and remit non-resident tax based on the gross rental income until we approve a valid undertaking in writing. If a valid NR6 is approved, the non-resident withholding tax must be determined when the actual rental payment is made taking into account expenses (excluding CCA). We must receive any non-resident tax withheld by the 15th day of the month following the month during which the rental payment was paid or credited to the agent on the non-resident's behalf.
 - The non-resident undertakes to file an income tax return, whether there is a profit or a loss situation, under subsection 216(4) of the Canadian Income Tax Act within six months of the end of the tax year for which the undertaking is filed. Each non-resident member of a partnership who files a valid undertaking must file a separate income tax return. For information on how to complete a Section 216 return, see the Income Tax Guide for Non-Residents Electing Under Section 216.
 - The agent has to file an NR4 return before March 31 of the year after the year in which the rental income was paid or credited, or within 90 days of the fiscal year end for estates and trusts. For information on how to complete the NR4 return, see the T4061 Non-Resident Withholding Tax Guide.
 - Send this application to the Non-Resident Withholding Section, Canada Revenue Agency, PO Box 20000, STN A, Sudbury ON P3A 5C1. You can also send it online through the Submit Documents service in My Account, or by fax at **1-866-765-8460** (in Canada and the U.S.) or **1-705-677-7712** (from anywhere else). If you have questions about this form, please call **1-855-284-5946** (in Canada and the U.S.) or **613-940-8499** (from anywhere else).
- For more information, see Information Circular 77-16R4, Non-Resident Income Tax.

Section 1 – Non-resident identification

- Print your name and address, including your country of residence, and telephone number.
- For individuals, provide your Canadian social insurance number (SIN) or individual tax number (ITN) and your date of birth. If you don't have a SIN or ITN, please complete Form T1261, Application for a Canada Revenue Agency Individual Tax Number (ITN) for Non-Residents.
- For corporations, trusts, and estates, provide your Canadian tax account number as well as your fiscal year end.
- Provide the first month of the year for which you expect to receive rental income.
- Provide your mailing address if it is different from your residential address.

Section 2 – Rental property information

- List all rental properties and provide the address of each rental property. Include the street number and name, apartment or suite number (lot and concession if a rural property), town or city, province or territory, and postal code. List additional properties on a separate sheet.
- Provide the estimated gross income, total expenses, and net income for the year for each property.
- On a separate sheet, provide an itemized estimate of the expenses you expect to incur during the year for each property. **(You have to provide this information.)** Include the current and prepaid expenses that relate to the day to day management of your property. Do not include capital cost allowance, depreciation, and amortization. You can claim these amounts when you file your income tax return.
- Each non-resident member of a partnership filing an undertaking should report only his or her share of the gross rents, total expenses, and net income.
- Rent on real or immovable property includes crop-sharing proceeds.

Section 3 – Undertaking by non-resident

- Sign and date in the designated area for the undertaking to be valid.
- If a representative signs on your behalf, he or she must print his or her name in the space provided and attach a copy of the power of attorney document.
- **If you do not fulfill your obligations as specified in the undertaking, you will have to pay to the Receiver General for Canada, the full amount of tax that you would otherwise have been required to remit in the year, as well as applicable interest charges. We calculate the required amount of tax at the statutory rate of 25% of the gross rental income, minus the amount of tax already remitted for the year.**

Section 4 – Canadian agent identification

- To be considered an agent for the purposes of this form, you must be a resident of Canada to whom the rental payments are paid or credited on behalf of the non-resident when this form is signed.
- Print your name, address, city or town, province, postal code, and telephone number.
- Provide your non-resident tax account number. If you do not have one, we will assign one to you when we process this form.
- Enter your other CRA identifier number, such as a business number (BN); social insurance number (SIN), temporary tax number (TTN), individual tax number (ITN); or trust account number, if applicable.
- Sign and date in the designated area.
- **If the non-resident does not file the income tax return or pay tax according to the conditions of the undertaking, you as agent will have to pay to the Receiver General for Canada the full amount of tax that would otherwise have been required to be remitted in the year, as well as applicable penalty and interest charges. We calculate the required amount of tax at the statutory rate of 25% of the gross rental income, minus the amount of tax already remitted for the year.**
- If you fail to file the NR4 return by the due date, you may be charged a penalty and interest.